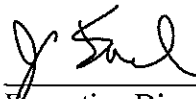


FIRST ENDORSEMENT

Executive Director Jonathan Darche, Civilian Complaint Review Board, to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, July 12, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27325 against Police Officer Conner Anzalone, Tax Registry No. 961622. The case was conferenced on June 29, 2023, before Assistant Deputy Commissioner of Trials Anne Stone, who approved the dismissal of the charge in return for the negotiated penalty of a Command Discipline Schedule (A) and the forfeiture of TWO (2) vacation days.



Executive Director,
Jonathan Darche
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-27325
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, ANZALONE	FIRST CONNER	M.I. A	COMMAND 060 PRECINCT
SHIELD NO. 15317	TAX REGISTRY NO. 961622	SOCIAL SECURITY NO.	DATE APPOINTED 07/13/2016	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Conner Anzalone, on or about July 31, 2021, at approximately 2054, while assigned to 060 PCT and on duty, in the vicinity of the Northwest corner of West 21st Street and Surf Avenue, Kings County, was discourteous to § 87(2)(b) in that he stated, in sum and substance, "Motherfucker," without police necessity.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 2.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.

DC Brubio
FIRST DEPUTY COMMISSIONER

10/2/23
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

11/29/23
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

November 20, 2023

Re: CCRB Case No. 202104754 (Incident Date: July 31, 2021) involving Police Officer Conner Anzalone, Tax No. 961622 (DADS No. 2022-27325)

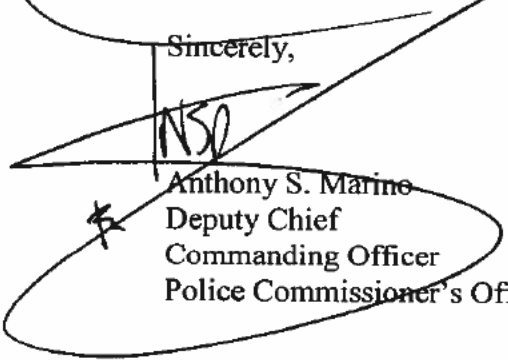
Dear Mr. Darche:

The Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) recommended penalty regarding the substantiated allegation against Police Officer Conner Anzalone and determined that the actions of Police Officer Anzalone do not warrant discipline.

In this case, police officers from the 60th Precinct pulled over a vehicle for driving through a steady red light. The motorist refused to provide his license and registration. The motorist eventually provided his name and the officers discovered that he had an open warrant. The motorist was then ordered to get out of the car, and the passenger proceeded to discharge pepper spray at the officers. Police Officer Anzalone stated that he received pepper spray in his mouth and eyes, and his partner had received pepper spray in his eyes. The officers subsequently attempted to place the motorist and passenger under arrest, and during the extended struggle to place handcuffs on the motorist, Police Officer Anzalone stated "motherfucker."

It is the opinion of the Police Commissioner that this statement was not directed at the motorist, but was rather in response to the stressful, chaotic, and dangerous situation caused by the motorist and the passenger. Additionally, Police Officer Anzalone has already been disciplined by the Police Department for other comments he made during this same incident. Therefore, the Police Commissioner has determined the discipline issued internally to Police Officer Anzalone is sufficient to address the misconduct cited during this incident. Based on the foregoing, the Police Commissioner intends to dismiss the charges and specifications in this matter, and Police Officer Anzalone will receive no additional disciplinary action.

Sincerely,


Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Stuart London, Esq.

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ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

November 27, 2023

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202104754 (Incident Date: July 31, 2021) involving Police Officer Conner Anzalone, Tax No. 961622 (DADS No. 2022-27325)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated November 20, 2023. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the Civilian Complaint Review Board’s (CCRB) recommended penalty, you intend on dismissing the charges and specifications in this matter and imposing no disciplinary penalty on Officer Anzalone, as you determined that Officer Anzalone’s statement of “Motherfucker” was not directed at a civilian but was rather in response to the stress of the situation he was facing. Additionally, you noted that Officer Anzalone had already been disciplined by the Police Department for a separate comment he made during the incident.

We disagree with the Police Commissioner’s determination that Officer Anzalone’s conduct does not warrant discipline. On June 29, 2023, in front of Assistant Deputy Commissioner Anne Stone, Officer Anzalone accepted the findings of substantiation of the allegations contained in the Charges and Specifications and agreed to receive a Command Discipline Schedule (A) and the forfeiture of two (2) vacation days.

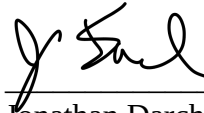
We disagree with the Police Commissioner’s opinion that Officer Anzalone’s statement, “Motherfucker” was not directed at the civilian, § 87(2)(b) Officer Anzalone’s BWC captures Officer Anzalone making this statement as he is standing directly behind § 87(2)(b) facing § 87(2)(b) and while he is assisting another officer in placing § 87(2)(b) into

handcuffs. The only feasible explanation for his statement is that it was directed at the civilian who was immediately in front of him, and who was resisting the efforts of Officer Anzalone and his partner to be placed into handcuffs.

We also disagree with the Police Commissioner's opinion that the fact that Officer Anzalone has already been disciplined for another remark he made during the incident should result in no discipline for this remark. The offensive language for which Officer Anzalone has already received discipline was a separate remark, "Get up you fucking animal...", that he made to a different civilian. It was a discrete remark made over a minute after his use of the term "Motherfucker" to § 87(2)(b) [REDACTED]. As such, both remarks warrant separate discipline. A member of service should not get a free pass to make multiple offensive or discourteous remarks by simply accepting discipline on one such remark.

The CCRB would ask the Police Commissioner to accept the CCRB's recommendation and penalty that was agreed to by Officer Anzalone, and impose upon Officer Anzalone a Command Discipline Schedule (A) and the forfeiture of two (2) vacation days.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "J. Darche", is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board